

The Compliance Chronicle

Texas Cottage-Food Operators Edition

Issue #1 — covering 2026-08 — published 2026-09-01

IMPORTANT — PLEASE READ

The Compliance Chronicle is an information service, not a law firm. Nothing in this issue is legal advice, and reading it does not create an attorney-client relationship. Plain-English summaries are provided for general awareness; the cited source text governs. For advice about your specific situation, consult a licensed Texas attorney.

Welcome to the first issue. This is the sample issue: it demonstrates the format — every item either carries an exact citation and source link or is marked as unverified, with a verification ledger at the end. Nothing here is legal advice.

WHAT CHANGED (3 item(s))

1. Governing statute re-verified: Texas Cottage Food Law (Health & Safety Code ch. 437)

No change to the law itself this month — but the statute is the floor everything else stands on, so we re-read it every cycle. Chapter 437 of the Health & Safety Code is what allows you to sell specific homemade foods from home. It sets the allowed-food list, the annual gross-income cap, and the exact statements your labels must carry.

Citation: Tex. Health & Safety Code ch. 437

Source: <https://statutes.capitol.texas.gov/Docs/HS/htm/HS.437.htm>

Action: Confirm the label on every product you sell still carries the statements Chapter 437 requires, including your home address and the 'not inspected' statement.

Deadline: 2026-10-01

File at: <https://statutes.capitol.texas.gov/Docs/HS/htm/HS.437.htm>

2. DSHS cottage food rule re-verified: 25 TAC § 229.661

No rule change this month. The DSHS rule (25 TAC § 229.661) is the agency's operating detail under the statute — food-handler training, labeling specifics, and how the sales cap is administered. We re-check it every cycle so you do not have to.

Citation: 25 Tex. Admin. Code § 229.661

Source: <https://www.dshs.texas.gov/food-manufacturers-wholesalers/cottage-food-industry>

Action: Review the DSHS cottage food page and confirm your food-handler training certificate is current.

Deadline: 2026-10-15

File at: <https://www.dshs.texas.gov/food-manufacturers-wholesalers/cottage-food-industry>

3. Community rumor: possible DSHS fee-schedule update for food manufacturers

WE COULD NOT VERIFY THIS ITEM.

We could not verify: Community rumor: possible DSHS fee-schedule update for food manufacturers. No authoritative source with an exact citation was found for this claim in this month's sweep.

Action items identify what changed, the published deadline, and the official portal or form. They are pointers to the authorities, not instructions for completing a filing.

VERIFICATION LEDGER

[VERIFIED] CLM-001 — Governing statute re-verified: Texas Cottage Food Law (Health & Safety Code ch. 437)

Tex. Health & Safety Code ch. 437

[VERIFIED] CLM-002 — DSHS cottage food rule re-verified: 25 TAC § 229.661

25 Tex. Admin. Code § 229.661

[UNVERIFIED] CLM-003 — Community rumor: possible DSHS fee-schedule update for food manufacturers

We could not verify: Community rumor: possible DSHS fee-schedule update for food manufacturers. No authoritative source with an exact citation was found for this claim in this month's sweep.

Totals: 2 verified, 1 unverified.

FORWARD DEADLINE CALENDAR

2026-10-01 Quarterly farmers-market vendor fee (example county) — confirm with your market

2026-11-30 Food-handler training certificate renewal window (check your own issue date) —

<https://www.dshs.texas.gov/food-handler-training>

This briefing is information, not legal advice.